



ANNEX 1 – JUSTIFICATION AND APPROVAL

J&A No. 25-01

(CLASS) JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

Upon the basis of the following justification, I hereby approve the issuance of the contractual action described below:

1. Contracting Activity.

The Office of Naval Research (ONR), Arlington, Virginia.

2. Description of the Action Being Approved.

The government intends to award a contract with firm-fixed-price line items to Unison Software, Inc. (Unison), located at 8444 Westpark Dr Ste 920, McLean, VA 22102-5125, to provide software licenses, maintenance, and continued subject matter on-site support for the ONR Unison Acquisition (UA) (formerly PRISM) contract writing system.

3. Description of Supplies/Services.

This requirement provides operations and maintenance services for the UNISON ACQUISITION system at ONR. The contractor shall support the installation of software updates in the ONR development environment and actively participate in the system testing of the application. The Contractor shall also provide comprehensive Database Administrator (DBA) Support. The place of performance will be One Liberty Center, 875 North Randolph Street, Arlington, VA.

The period of performance for this contract will be a base period for 9 months with two option periods of 6 months each. The total estimated dollar value (including all options, anticipated modifications and the 52.217-8 6-month option) is estimated not to exceed [REDACTED].

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. § 2304(c)(1) as implemented by FAR 13.500(a) -- Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

Successful performance of this requirement necessitates detailed knowledge of Unison's UA

software, ONR's business processes, and ONR's unique configuration and implementation of UA. Unison is the only source that can provide this combination of knowledge as well as the software licenses and maintenance. Transitioning to a new contract writing system for approximately 150 users would require an estimated investment of [REDACTED], covering software procurement, system implementation, data migration, training, security compliance, and operational adjustments. Given the significant financial and operational burden, along with the risks associated with transitioning to a new system, a sole-source award to the current provider is the most cost-effective and mission-supportive course of action. Additionally, Unison is the only source with detailed knowledge and early access to the latest release of the UA software that will be deployed during the period of performance of this action. Unison is the exclusive distributor for UA software licenses and maintenance.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A sources sought notice was published on the Government point of entry sam.gov website from 30 August 2024 to 13 September 2024, per DFARS PGI 206.302-1. In addition to Unison a response was received from [REDACTED] did not provide justification that they could meet the requirements of the PWS. Additionally, a synopsis was published in sam.gov from 27 January 2025 to 10 February 2025, expressing the Navy's intent to sole source the award to Unison. No other companies expressed an interest. No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5 above, for any company other than Unison to provide the required supplies and services.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, ONR has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, ONR will assess whether competition for future requirements is feasible. ONR has transitioned to the Navy's Electronic Procurement System (ePS). While the legacy UA is scheduled for decommissioning in FY26-27, it remains operational to provide supplementary support and serve as a contingency system during the interim period.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Signature

Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Signature

Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

Signature

Date

APPROVAL BLOCK

Upon the basis of the above justification, I hereby approve, as Competition Advocate, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).

SPEDE.JOSEPH.KENT

Digitally signed by SPEDE.JOSEPH.KENT
Date: 2025.04.01 14:23:53 -04'00'

Joseph Spede, CAPT, SC, USN, Deputy Director Contracts, Grants & Acquisition (Code)